

25NNCV06491 25NNCV06491

County: los-angeles

Division: Civil Law and Motion

Department: A

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Case Number: 25NNCV06491 Hearing Date: September 11, 2026 Dept: A

TENTATIVE RULING

SEPTEMBER 11, 2026

MOTION FOR ATTORNEY's FEES,
COSTS, and EXPENSES

Los

Angeles Superior Court Case # 25NNCV06491

MP: Plaintiff

Arman Khachatryan

RP: Defendant General Motors LLC

NOTICE:

The Court is not requesting oral argument on this matter. The Court is guided by California Rules of Court, Rule 3.1308(a)(1) whereby notice of intent to appear is requested. Unless the Court directs argument in the Tentative Ruling, no argument is required and any party seeking argument should notify all other parties and the court by 4:00 p.m. on the court day before the hearing of the party's intention to appear and argue. The tentative ruling will become the ruling of the court if no argument is received.

Notice may be given

either by email at BurDeptA@LACourt.ca.gov or by telephone at (818) 260-8412.

ALLEGATIONS:

Arman Khachatryan ("Plaintiff") alleges that on September 25, 2024, he leased a 2024 Cadillac Lyriq, which was accompanied by express and implied warranties from General Motors LLC ("Defendant"). Plaintiff asserts that the vehicle was delivered with serious defects and nonconformities to the warranty, including defective electrical and mechanical components. Plaintiff claims that despite a reasonable number of repair attempts, Defendant was unable to conform the vehicle to applicable warranties.

The Complaint, filed September 15, 2025, alleges causes of action for: (1) Breach of Express Warranty Obligations Under Song-Beverly Act; and (2) Breach of Implied Warranty Obligations Under Song-Beverly Act.

On May 22, 2026, Plaintiff filed a Notice of Conditional Settlement of Entire Case.

MOTION ON CALENDAR:

On May 28, 2026, Plaintiff filed a Motion for Attorney's Fees, Costs, and Expenses. On August 28, 2026, Defendant filed an opposition. On September 1, 2026, Plaintiff filed two copies of the reply brief—one at 11:41 a.m. and the other at 11:59 a.m. The Court will consider the later-filed reply.

An OSC re: Dismissal (Settlement) is concurrently scheduled this date.

LEGAL STANDARD:

A prevailing party in an action under the Song-Beverly Act may be entitled to reasonable attorney's fees. (Civ. Code § 1794(d); see also C.C.P. § 1032(a)(4).) The calculation of attorney's fees under the Song-Beverly Act is based on the lodestar method, which multiplies the number of hours reasonably expended by a reasonable hourly rate. (Graciano v. Robinson Ford Sales (2006) 144 Cal.App.4th 140, 154; Robertson v. Fleetwood Travel Trailers of California, Inc. (2006) 144 Cal.App.4th

785, 817-819.) Nonetheless, the prevailing party should not receive a "windfall" through an award of reasonable attorney's fees. (Ketchum v. Moses (2001) 24 Cal.4th 1122, 1132.) Thus, a prevailing buyer under the Song-Beverly Act has the burden of "showing that the fees incurred were 'allowable,' were 'reasonably necessary to the conduct of the litigation,' and were 'reasonable in amount.'" (Levy v. Toyota Motor Sales, U.S.A., Inc. (1992) 4 Cal.App.4th 807, 816.)

Once an attorney has presented evidence of their actual time spent and hourly rate charged, the time and hourly rate are presumed to be reasonable, unless "special circumstances" render the award unjust. (Serrano v. Unruh (1982) 32 Cal.3d 621, 639.) An award of attorney fees may be based on counsel's declarations, without production of detailed time records. (Raining Data Corp. v. Barrenechea (2009) 175 Cal.App.4th 1363, 1375.) The verified time statements of attorneys, as officers of the court, are entitled to credence in the absence of a clear indication the records are erroneous. (Horsford v. Board of Trustees of California State University (2005) 132 Cal.App.4th 359, 396.)

The California Supreme Court has opined that an attorney should not receive a windfall relative to statutes which award attorney's fees. As such, "plaintiffs' counsel are not permitted to take contractual fees in addition to statutory fees: If the contingency fee is larger than the statutory fee award, counsel is permitted to accept that fee, with a setoff for statutory fees received. If the contingency fee is smaller than the statutory fee, counsel must reimburse the plaintiff from the statutory award for any amounts already paid by the client pursuant to the contingency contract." (Horsford v. Board of Trustees of California State University (2005) 132 Cal.App.4th 359, 401 [citing Flannery v. Prentice (2001) 26 Cal.4th 572, 577].)

ANALYSIS:

Plaintiff moves for attorney's fees and costs in the amount of \$23,842.50 in attorney's fees, \$3,000 in anticipated fees for this motion, a 0.5 lodestar multiplier for \$11,921.25, and costs of \$551.67, for a total of \$39,315.42.

A.

Prevailing Party and Basis for Attorney's Fees

In the moving papers, Plaintiff does not address his entitlement to fees. At most, he argues that pursuant to the terms of a 998 Offer to Compromise, Plaintiff is entitled to file this motion and that Defendant agreed Plaintiff is the prevailing party for the purposes of an attorney's fees' motion, citing Plaintiff's counsel Claude Manookian's declaration at paragraph 28. (See Mot. at 3:21-28.) A review of Mr. Manookian's declaration shows that it ends at paragraph 24 and does not discuss the 998 Offer.

In Defendant's opposition, defense counsel Ryan Kay states that after eight months of litigation, the parties reached a settlement preceding mediation in "February 2024," and Plaintiff executed a settlement agreement on March 6, 2026. (Kay Decl., ¶9.)

Although a copy of the settlement agreement is not attached, it does not appear that Defendant opposes Plaintiff's characterization as the prevailing party for the purposes of this motion, nor does it argue that fees are not permitted on contractual and/or statutory grounds.

However, for completeness of the record, the Court will continue the hearing and order Plaintiff to file a copy of the 998 Offer and/or executed settlement agreement, showing that the parties agreed that Plaintiff may seek attorney's fees by motion and that Plaintiff is deemed the prevailing party for the purposes of a motion for attorney's fees.

B. Amount of Reasonable Attorney's Fees

Plaintiff seeks \$23,842.50 in attorney's fees for fees incurred and an additional \$3,000 for anticipated fees for this motion.

Plaintiff's counsel Claude Manookian provides the firm's billing records. (Manookian Decl., ¶18, Ex. A.) Mr. Manookian is the founder and managing

partner of Manookian Law, APLC and bills at \$800/hour. (Id., ¶¶3-5.) Senior associate, Artin Boghouzian (admitted 2021), bills at \$325/hour. (Id., ¶10.)

While the billing records seek a total of \$23,842.50, the Court notes that the billing records include timekeepers “CM”, “AB”, “MS”, and “RM”.

While CM and AB are presumably Claude Manookian and Artin Boghouzian, respectively, the Court is unaware of the identity and roles of MS and RM (who each bill at \$175/hour).

Furthermore, the motion’s memorandum of points and authorities, Mr. Manookian’s declaration, and the billing records do not provide the total amount of hours each timekeeper spent, such that the Court cannot conduct a lodestar analysis.

Thus, the Court continues the hearing on this motion so that Plaintiff may: (1) identify the other timekeepers in the billing records and justify their hourly rates and time spent on this action; and (2) provide the total hours each timekeeper spent so that the Court can conduct a lodestar analysis.

RULING:

In the event a party requests a signed order or the court in its discretion elects to sign a formal order, the following form will be either electronically signed or signed in hard copy and entered into the court’s records.

ORDER

Plaintiff Arman Khachatryan’s Motion for Attorney’s Fees, Costs, and Expenses came on regularly for hearing on September 11, 2026, with appearances/submissions as noted in the minute order for said hearing, and the court, being fully advised in the premises, did then and there rule as follows:

THE

MOTION FOR ATTORNEY’S FEES AND COSTS IS CONTINUED TO OCTOBER 2, 2026 at 9:00

a.m.

PLAINTIFF

IS ORDERED TO FILE AND SERVE A SUPPLEMENTAL BRIEF (NOT TO EXCEED FIVE PAGES) BY SEPTEMBER 18, 2026 REGARDING: (1) THE 998 OFFER AND/OR SETTLEMENT AGREEMENT; AND (2) THE ADDITIONAL TIMEKEEPERS AND THE TOTAL AMOUNT OF HOURS EACH TIMEKEEPER SPENT. DEFENDANT MAY FILE AND SERVE A RESPONSIVE SUPPLEMENTAL BRIEF (NOT TO EXCEED FIVE PAGES) BY SEPTEMBER 28, 2026.

THE

COURT DISMISSES THIS MATTER WITHOUT PREJUDICE BUT SUBJECT TO THE COURT'S RETAINED JURISDICTION, INCLUDING THE RULING ON THE FEE MOTION, PURSUANT TO CODE OF CIVIL PROCEDURE §664.6.

Plaintiff

TO GIVE NOTICE.

IT IS SO ORDERED.